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COMPLAINANT

See appendix

SUPERVISION SUBJECT

Aktiebolaget Trav och Galopp

Decision after supervision according to
the General Data Protection Regulation –
Aktiebolaget Trav och Galopp

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that Aktiebolaget Trav och Galopp (ATG, 556180-4161) has processed the complainant's personal data in violation of Articles 6 and 7.3 of the General Data Protection Regulation by not making it as easy to withdraw consent as it was to give it, and by complicating the complainant's ability to provide informed and voluntary consent through the misleading design of its cookie banner.

IMY issues a reprimand to ATG under Article 58.2 b of the General Data Protection Regulation for the violations.

Account of the supervisory case

IMY has initiated supervision against ATG in order to investigate a complaint. The complaint is one of several complaints submitted to European data protection authorities regarding cookies and cookie banners. The complaints primarily concern the design of cookie banners, the placement of cookies, and the subsequent processing of personal data after the cookies have been placed on the complainant's browser or device. To facilitate cooperation on these complaints, a working group (Cookie Banner Taskforce) was created within the European Data Protection Board.

Given that this concerns cross-border processing, IMY has utilized the mechanisms for cooperation and consistency provided in Chapter VII of the General Data Protection Regulation. The relevant supervisory authority has been the data protection authority in Austria.

The complainant has stated the following. On May 21, 2021, ATG processed the complainant's personal data in violation of the General Data Protection Regulation because there was no valid consent. It was also not possible to refuse cookies in the first layer, thereby complicating the ability to refuse the processing of personal data. The design of the cookie banner, through color choice, contrast, and links, has also been misleading, which meant that it was not possible to provide informed and voluntary consent in accordance with the General Data Protection Regulation. This also violates the principle of transparency. Furthermore, it has not been as easy to withdraw consent as it was to give it. ATG's information about the use of cookies on the website (in a so-called cookie banner) has been attached to the complaint.

ATG has stated the following. On May 21, 2021, ATG had consent as the legal basis for the processing. It was possible to refuse cookies, and this could be done in the second layer. It was also possible to withdraw consent. Information about the right to withdraw consent was provided in the second layer. Consent was withdrawn via ATG's cookie policy under the heading "How do I manage consent/refusal of cookies?". There were certain deficiencies in the consent on May 21, 2021, which is why the following was addressed in October 2021. ATG introduced a clear button to refuse cookies instead of a link. Furthermore, the color and contrast of the buttons were changed. No other cookies

than necessary ones were placed in the visitor's browser before they actively consented to cookies. ATG has attached images of the changes in the cookie banner. The complainant has been given the opportunity to comment on ATG's statement and has then withdrawn the complaint in the parts concerning the ability to refuse cookies in the first layer and misleading link design.

Scope of the case

The Swedish Post and Telecom Authority is the sole competent supervisory authority over the Act (2022:482) on Electronic Communication (LEK), which sets specific requirements for the storage of cookies in terminal equipment or the collection of data from such equipment. However, the processing of personal data that occurs after collection, such as analysis or profiling, falls under the rules of the General Data Protection Regulation, where IMY is the competent supervisory authority. IMY's review has therefore been limited to the processing of personal data that has occurred after the data was collected and the deficiencies alleged in the complaint regarding this subsequent processing. During the handling of the case, the complainant has stated that the issues regarding the inability to refuse cookies and that ATG complicates the complainant's ability to withdraw or refuse consent through the use of a misleading link are now resolved. IMY also notes that ATG has changed its cookie banner and that there is now a way to refuse cookies in the first layer, and that a button is used instead of a link to refuse cookies. Therefore, IMY finds no reason to investigate this further.

Reasoning of the decision

Applicable provisions, etc.

The processing of personal data is only lawful if one of the conditions set out in Article 6 of the General Data Protection Regulation is met. The legal basis relevant to this case is consent according to Article 6.1 a.

Consent is defined in Article 4.11 of the General Data Protection Regulation as any indication of voluntary, specific, informed, and unambiguous will, by which the data subject, either by a statement or by a clear affirmative action, agrees to the processing of personal data concerning him or her. For consent to be valid, all these requirements must be met.

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Voluntary and Informed Consent

The processing of personal data must be conducted in an open manner in relation to the data subject, as stipulated by the principle of transparency in Article 5.1 of the Regulation. It is in light of this principle that the requirement for consent to be informed should be interpreted.

Recital 42 of the General Data Protection Regulation states that consent should not be considered voluntary if the data subject has no genuine or free choice or cannot easily refuse or withdraw their consent.

In the European Data Protection Board (EDPB) guidelines on consent, it is stated that there must be a real choice and genuine control for data subjects. As a general rule, the General Data Protection Regulation prescribes that if the data subject has no real choice, feels compelled to consent, or will face negative consequences if they do not consent, the consent will not be valid. The guidelines also indicate that data controllers should design consent solutions that are clear to the data subjects.

The EDPB further believes that using a small font size or a color that does not contrast sufficiently to provide adequate readability (e.g., light gray text on a white background) can negatively impact users, as the text becomes less visible and users may either overlook it or have difficulty reading it.

Withdrawing Consent

Article 7.3 of the General Data Protection Regulation stipulates that the data subject must have the right to withdraw their consent at any time for the consent to be valid. Before consent is given, the data subject must be informed of this. It should be as easy to withdraw consent as it is to give it.

In the EDPB guidelines on consent, it is stated that consent does not have to be given and withdrawn through the same action; however, it should be equally simple. When consent is given electronically through a single mouse click, a swipe, or a keystroke, the data subjects must practically be able to withdraw their consent just as easily. If consent is obtained through a service-specific user interface (e.g., via a website or an app), the data subject must undoubtedly be able to withdraw consent through the same electronic interface, as it would require an unreasonable effort to switch to another interface solely to withdraw consent. Furthermore, the data subject should be able to withdraw consent without difficulty. This means, among other things, that a data controller must ensure that it does not cost anything to withdraw consent and that doing so does not result in a deterioration of the service.

The question in this case is whether there has been valid consent to process the complainant's personal data.

Assessment

ATG provides information that cookies are used on the website in a so-called cookie banner, which is displayed when the user first enters the website. In the first layer of the cookie banner, as it appeared on May 21, 2021,

2 EDPB Guidelines 05/2020 on Consent under Regulation (EU) 2016/679, version 1.1, adopted on May 4, 2020, paragraphs 13 and 84.

3 EDPB Guidelines 03/2022 on Deceptive Design Patterns in Interfaces on Social Media Platforms: How to Recognize and Avoid Them, version 2.0, adopted on February 14, 2023, paragraphs 51 and 84.

4 EDPB Guidelines 05/2020 on Consent under Regulation (EU) 2016/679, version 1.1, adopted on May 4, 2020, paragraphs 113-114.

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There were two options available for the data subject, "Choose your cookies" and "Accept all cookies." The assessment below is based on this cookie banner on the company's website.

Comparison of the procedures for consenting and withdrawing consent

The complainant highlights the option of having a permanent hovering icon that is visible on all pages of the website to withdraw consent. IMY believes that a permanent hovering icon is an option that can meet the requirement that it should be as easy to withdraw consent as it is to give consent. However, IMY does not believe that the General Data Protection Regulation includes a requirement for a specific technical solution that all data controllers must use to meet the requirement in Article 7.3.

The assessment of whether it is as easy to withdraw consent as it is to give consent needs to be made on a case-by-case basis based on the specific procedure used to give consent. This assessment is in line with the "Cookie Banner Taskforce report" and the EDPB's opinion on valid consent.

During the relevant period when a user first visited ATG's website, the cookie banner appeared immediately. The title of ATG's cookie banner was "Accept cookies." There, the user could consent to the use of all (non-essential) cookies with just one click. Once a user had given their consent in the cookie banner, the cookie banner disappeared, and the website became usable. To withdraw consent, the data subject needed to go to the company's cookie policy, which was located at the bottom of the footer under the heading "Personal Data." There, one needed to click on the button "Cookies" and then on the button "How do I manage acceptance/refusal of cookies?". Information about accepting/refusing cookies then appeared, and at the bottom, there was the option "click here to open the cookie modal." There, the data subject needed to click once more and then entered a settings center where they needed to uncheck the categories of cookies they had previously consented to and then press "save settings." In comparison with how consents were obtained on the website, significantly fewer clicks were required to give consent than to withdraw consent. IMY further believes that it was difficult for a data subject to even find where to withdraw their consent.

Since May 21, 2021, ATG has made changes to its cookie banner. ATG has, among other things, added clarifying headings about withdrawal under the button "how do I manage acceptance/refusal of cookies?" in the cookie policy. However, the data subject still needs to go through all the steps described above to withdraw consent. IMY's assessment is therefore that the changes made have not led to a situation where a data subject can withdraw their consent as easily as they can give consent.

Misleading design

IMY does not believe that a general standard can be established regarding which colors and contrasts a data controller should use in their cookie banner. An assessment of a cookie banner and whether it complies with the General Data Protection Regulation needs to be made on a case-by-case basis. The assessment should concern whether the contrast and color are obviously misleading for the data subject and do not result in an unintentional and thus invalid consent. This assessment is in line with the "Cookie Banner Taskforce report."

5 Report on the work carried out by the working group within the EDPB, "Cookie Banner Taskforce," adopted on January 17, 2023, point 35, and opinion 08/2024 on valid consents regarding "Consent or Pay Models" implemented by major online platforms, adopted on April 17, 2024, point 169 (IMY's translation).

6 Report on the work carried out by the working group "Cookie Banner Taskforce," adopted on January 17, 2023, point 17.

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IMY does not believe that the option to refuse and to accept cookies needs to look exactly the same to comply with the provisions of the data protection regulation regarding consent. However, they must be equivalent so that the data subject is not misled in their choice.

During the relevant period, ATG used two different colors for the options "Choose your cookies" and "Accept all cookies." A link was used for the option to refuse cookies, and a button was used to accept cookies. The link consisted of gray/black text, while the button to accept was green with white text. The background of the banner was white. The option to refuse cookies, that is, the link, is therefore not perceived as prominently as a green button against a white background. Furthermore, it is not clear that the link constitutes a possible choice for a user. It appears more as mere information since the text "Choose your cookies" is designed in the same way as the general information about cookies in the banner. IMY therefore believes that the design of the cookie banner reinforced the perception that the user should click to accept cookies. This must also be viewed in light of the fact that the cookie banner had the heading "Accept cookies." IMY believes that ATG's design of the cookie banner and the choice of colors and contrasts have been designed to encourage the data subject to accept cookies. ATG has stated that the company needs to comply with regulations to improve accessibility. IMY does not believe that this justifies the company needing to reinforce the option to accept cookies.

IMY's assessment is that the complainant's consent cannot have been an expression of their unequivocal will since the design made it seem that there were no other options than to consent. The complainant could therefore not have been considered to have had the opportunity to give informed and voluntary consent.

ATG has changed its design of the cookie banner after the complaint. IMY believes that these changes have resulted in certain improvements for the data subject to give voluntary and informed consent. However, IMY believes that the design, despite the changes, still makes the option to allow all cookies more prominent than to refuse. This is because the option to accept cookies still has a clearer contrast against the background than the option to refuse cookies. Against this background, IMY believes that ATG has used misleading design in its choice of color and contrast in its cookie banner, which affects the complainant's ability to give informed and voluntary consent.

Summary

ATG has not made it as easy to withdraw consent as it is to give it. Furthermore, the company has used misleading design in its choice of color and contrast in the cookie banner, which has affected the

complainant's ability to give voluntary and informed consent. There has therefore not been valid consent and thus no legal basis to process the complainant's personal data. ATG has thus processed the complainant's personal data in violation of Articles 6 and 7.3 of the data protection regulation.

Choice of Intervention

Article 58.2 and Article 83.2 of the data protection regulation indicate that IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines shall be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 specifies the factors to be taken into account when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand in accordance with Article 58.2 b.

Consideration shall be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. IMY has assessed that the company did not have a legal basis to process the complainant's personal data. Although ATG is not deemed to have made the withdrawal as easy as giving consent, there has been an opportunity to withdraw consent, and the company has made certain improvements after the complaint to facilitate for the data subject. ATG has also made some improvements regarding the design of the cookie banner, although these have been deemed insufficient. The company has not previously been found to have violated the data protection regulation.

In a balanced assessment, IMY believes that this concerns such minor infringements in the sense referred to in Recital 148 of the data protection regulation that warrants ATG being given a reprimand in accordance with Article 58.2 b of the data protection regulation for the identified infringements.

This decision has been made by the unit manager Albin Brunskog after presentation by the lawyer Michaela Prieto Ceric.

Albin Brunskog

Albin Brunskog

Appendix

Complainant's personal data

Copy to

dataskyddsbud@atg.se

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How to Appeal

If you wish to appeal the decision, you must write to IMY. In your letter, specify which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks from the date you were notified of the decision. However, if you are a party representing the public interest, the appeal must be received within three weeks from the date the decision was announced. If the appeal is submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to IMY if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.